

TENTATIVE RULINGS

FOR: September 11, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of Ravinder Parkash Kundra

25PR000098

REVIEW – 1ST YEAR

TENTATIVE RULING: The Court sets the matter for an Accounting on November 3, 2026, at 8:30 a.m. in Dept. A. The Review – 1st Year is CONTINUED to November 3, 2026, at 8:30 a.m. in Dept. A to coincide with the Accounting and to allow conservator time to file: (1) Notice of Conservatee’s Rights (Judicial Council form GC-341) mailed to relatives of the

proposed Conservatee within the second degree; and (2) Care Plan (Judicial Council form GC-355/356).

This is a conservatorship of the person and estate. There is no accounting on file as required pursuant to Probate Code section 2620, subdivision (a). All accounting documents (or a Request for Waiver of Accounting, Form GC-410) must be filed at least 30 days prior to the next hearing. The Clerk is directed to send notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Joel V. Benson v. Lisa Benson et al

25CV001556

STATUS CONFERENCE RE: APPRAISER

APPEARANCE REQUIRED

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Firefly Health Corp v. Trulieve Inc. et al

26CV000476

MOTION FOR RECONSIDERATION OF ORDER GRANTING MOTION TO COMPEL ARBITRATION AND REQUEST FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Firefly Health Corp. dba Velvet Cannabis (Firefly) moves, pursuant to Code of Civil Procedure sections 1008, subdivision (a), for reconsideration of the Court's Order After Hearing Granting Defendant's Motion to Compel Arbitration, filed August 5, 2026 (8/6 OAH). Firefly also moves, pursuant to Code of Civil Procedure sections 473, subdivision (a)(1), and 576, and California Rules of Court, rule 3.1324, for leave to file a Second Amended Complaint.

"When an application for an order has been made to a judge, or to a court, and . . . granted . . . any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Code Civ. Proc., § 1008, subd. (a) (Section 1008).)